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BEFORE THE
FEDERAL MARITIME COMMISSION

Federal Maritime Commission
Office of the Secretary

PETITION OF COSCO SHIPPING LINES CO., LTD., ORIENT OVERSEAS CONTAINER
LINE LIMITED, AND OOCL (EUROPE) LIMITED FOR AN EXEMPTION FROM
AGREEMENT FILING

P2-17

Pursuant to Section 16 of the Shipping Act of 1984, as amended (46 U.S.C. § 40103(a)), and to 46 C.F.R. § 502.92, and 46 C.F.R. § 535.301, COSCO Shipping Lines Co., Ltd. ("Cosco") and Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively trading as "OOCL") respectfully petition the Commission for an exemption from the agreement filing requirements of the Act. Cosco and OOCL have an interest in the subject matter of this petition because the requested exemption would relieve them of agreement filing requirements that may apply after Cosco's acquisition of OOCL.

Introduction

As detailed below, upon closing of the contemplated transaction described below, Cosco and OOCL will be affiliates under common ownership and control. The purpose of the requested exemption is to replicate as to Cosco and OOCL the exemption automatically applicable to wholly-owned subsidiaries pursuant to 46 C.F.R. 535.307, including its exemption from the provisions of Section 10(c) of the Act, 46 U.S.C. § 41105. The exemption would apply to all agreements and activities between Cosco and OOCL that would otherwise be subject to filing under the Act, so long as the parties are commonly owned and controlled. The requested exemption is justified by the same competition considerations and policies that led the Commission to adopt Section 535.307.

As the Commission is well aware, COSCO SHIPPING Holdings Co., Ltd. (“CS Holdings”) (Cosco’s parent company) is, through its wholly-owned subsidiary Faulkner Global Holdings Limited (“Faulkner”), in the process of acquiring Orient Overseas (International) Limited, the direct (100% owned) corporate parent of the OOCL petitioners. It is anticipated that the transaction will be completed soon, potentially as early as mid-December 2017. Once the transaction is completed, OOCL will be majority (although not 100%) owned, and will be controlled by, CS Holdings. Thus, Cosco and OOCL, while still separate legal entities, will be part of a single, common business enterprise ultimately controlled by CS Holdings. Accordingly, the rationale for the exemption in 46 CFR § 535.307 applies equally to the Cosco/OOCL combination. Furthermore, for the reasons set forth below, the requested exemption will not result in a substantial reduction in competition and will not be detrimental to commerce.

Factual Background

In support of this Petition, Cosco and OOCL state the following facts with respect to the pending transaction and the ultimate control of both Cosco and OOCL by CS Holdings.

1. Cosco is incorporated in the People’s Republic of China, with its head office located in Shanghai, China. Cosco operates as an ocean common carrier in the U.S. foreign commerce in numerous trades between ports in the United States and ports in other countries.
2. Orient Overseas Container Line Limited is a Hong Kong corporation with its head office located in Hong Kong and OOCL (Europe) Limited is an England and Wales corporation with its head office located in England. OOCL operates as an ocean common carrier in numerous trades between ports in the United States and ports in other countries. OOCL and OOCL (Europe)

Limited are organized as separate legal entities for corporate reasons unrelated to the issues in this Petition. These two entities combine to provide service under the OOCL trade name. Both entities are 100% subsidiaries of OOIL, and therefore will be ultimately controlled by CS Holdings after the transaction is completed.

3. Cosco and OOCL will be commonly owned and controlled by CS Holdings, the direct (100% owned) corporate parent of Cosco. On July 7, 2017, Faulkner and Shanghai Port Group (BVI) Development Co., Limited, a wholly-owned subsidiary of Shanghai International Port (Group) Co., Ltd. (“SIPG”) jointly announced their firm intent to make a voluntary general offer to acquire all issued shares in Orient Overseas (International) Limited, the direct (100% owned) corporate parent of OOCL (the “Offer”). At the close of the Offer, depending on the number of shares tendered, CS Holdings will hold up to 90.1% and at least 58.5% of the shares of OOIL and therefore will have clear majority ownership and control of OOIL. The transaction is currently pending regulatory reviews. However, it is anticipated that the necessary reviews will be completed soon and that the transaction will close soon, potentially as early as mid-December 2017.

4. The parties intend to maintain OOIL’s separate listing on the Stock Exchange of Hong Kong, Limited (“HKSE”). HKSE Rules require that to maintain the listing, at least 25% of the shares of OOIL must be held by the public following the transaction. Accordingly, CS Holdings may be required to sell to others that number of shares required to maintain the requisite level of public ownership. As a result, CS Holdings’ total interest will decline from 90.1%, but the exact percentage cannot be determined now, and would never fall below 58.5%. Accordingly, in all events, CS Holdings will be the majority shareholder of OOIL.

5. The initial post-transaction ownership of Cosco and OOCL will be as shown in the

organizational chart attached as Exhibit A. CS Holdings will: (a) continue to directly own 100% Cosco, and (b) own through holding companies more than 50 percent of OOCL. Thus, even after any transfer of shares to maintain the public float, CS Holdings will have ownership and control of both Cosco and OOCL.

6. Ultimately, then, OOIL will have CS Holdings, SIPG and other public shareholders as shareholders. SIPG is a holding company that has some other shareholding relationships with the Cosco family of companies. It is a holding company of port interests, and is not an ocean common carrier.

7. The parties have agreed to retain the OOCL brand, management, and employees after the transaction closes, but that does not alter the fact that OOCL will be majority owned and controlled by CS Holdings. The OOCL brand is familiar to the shipping public, and retention of that brand will help leverage the strengths of each company and achieve synergies. In order to achieve synergies following closing of the transaction, the parties anticipate entering into agreements reflecting operational and other activities that might otherwise be required to be filed with the FMC. However, even as separate brands and management are maintained, the companies will be commonly owned and controlled through CS Holdings, and will be part of what the FMC and the courts have referred to as a common business enterprise acting with a unity of interest.

8. In that regard, the July 9, 2017 press release announcing the acquisition (Exhibit B hereto) emphasized that this transaction is a consolidation, and that the intent is to have the two companies operate for common purposes:

The transaction marks the latest consolidation in the global maritime industry. It is believed that the combination of COSCO SHIPPING Holdings and OOIL can deliver a stronger competitive advantage . . . The combination will enhance the industry leading position of both companies . . . Post-closing, COSCO SHIPPING

Lines and OOIL will continue to operate under their respective brands, providing container transport and logistic services. By leveraging the strengths of each company and achieving synergies, the businesses will enhance their operating efficiencies and competitive positions to achieve sustainable growth in the long term.

9. The parties filed notice of the acquisition under the Hart-Scott-Rodino Act and have received clearance for the transaction from the U.S. Department of Justice.

**The Requested Exemption Meets the Shipping Act
Standard for Exemptions Under 46 U.S.C. §40103(a)**

46 U.S.C. §40103(a) authorizes the Commission to issue an order exempting any class of agreements or activity of persons subject to the Act if the Commission finds that “the exemption will not result in substantial reduction in competition or be detrimental to commerce.” That standard is met in this case. Specifically, since 1988, the Commission has exempted all agreements between or among wholly owned subsidiaries and/or their parents from FMC agreement filing provisions and Section 10(c). 46 CFR §535.307. While OOCL will be majority, not wholly, owned by CS Holdings, the policy considerations on which the Section 535.307 exemption is based are the same here, and justify an identical exemption in this case.

Section 535.307 provides as follows.

§535.307 Agreements between or among wholly-owned subsidiaries and/or their parent exemption.

- (a) An agreement between or among wholly-owned subsidiaries and/ or their parent means an agreement under section 4 of the Act (46 U.S.C. 40301(a)-(c)) between or among an ocean common carrier or marine terminal operator subject to the Act and any one or more ocean common carriers or marine terminal operators which are ultimately owned 100 percent by that ocean common carrier or marine terminal operator, or an agreement between or among such wholly-owned carriers or terminal operators.
- (b) All agreements between or among wholly-owned subsidiaries and/or their parent are exempt from the filing requirements of the Act and this part.
- (c) Ocean common carriers are exempt from section 10(c) of the Act (46

U.S.C. 41105) to the extent that the concerted activities proscribed by that section result solely from agreements between or among wholly-owned subsidiaries and/or their parent.

(d) The filing fee for optional filing of these agreements is provided in §535.401(g).

The Section 535.307 exemption was adopted in 1988 in response to a Petition for Exemption by Crowley Maritime Corporation that the Commission, *sua sponte*, expanded to the industry as a whole. It was apparently limited to wholly owned subsidiaries because that is what Crowley requested, given that it had a number of different common carriers, operating as independent brands, that were all wholly owned. See Final Rule, Docket No. 88-8, *Agreements Between or Among Wholly-Owned Subsidiaries and/or Their Parent; Exemption*, 53 Fed. Reg. 11072 (April 5, 1988). There is nothing in the Order indicating that the Commission gave consideration to parent/subsidiary relationships in which the parent owned a controlling interest that was less than 100% of the subsidiary. The Commission found that the exemption granted “will not substantially impair effective regulation by the Commission, be unjustly discriminatory, result in a substantial reduction in competition, or be detrimental to commerce.” *Id.*

The Petition in Docket 88-8 was based on the rationale that the subsidiaries involved, even though separate corporations operating as individual brands, were all part of what is typically referred to as a single business enterprise. Crowley’s primary argument was summarized in the Commission’s notice of the filing of the petition:

While acknowledging that in most aspects of their operations the various Crowley subsidiaries act through separate entities, it is also argued that they are all [also] parts of a single, common business enterprise acting for the ultimate commercial benefit of Crowley [as a whole]. It is contended that the subsidiaries are not natural competitors, are in fact managed to avoid competition, and are legally incapable of combining or conspiring together in restraint of trade or commerce within the meaning of the antitrust laws.

Crowley Maritime Corp.; Filing of Application for Section 16 Exemption, 52 Fed. Reg. 48879

(December 28, 1987)(bracketed language added).

It was these arguments that the Commission accepted when it granted the exemption in 1988 and found that there would be no substantial reduction in competition or detriment to commerce. This rationale is very similar to that enunciated by the U.S. Supreme Court in a 1984 decision addressing the same issue in the antitrust context, *Copperweld Corp. v. Independence Tube Corp.*, 467 U.S. 752 (1984). In *Copperweld*, the Supreme Court found as follows:

[T]he coordinated activity of a parent and its wholly owned subsidiary must be viewed as that of a single enterprise for purposes of § 1 of the Sherman Act. A parent and its wholly owned subsidiary have a complete unity of interest. Their objectives are common, not disparate; their general corporate actions are guided or determined not by two separate corporate consciousnesses, but one. They are not unlike a multiple team of horses drawing a vehicle under the control of a single driver. With or without a formal "agreement," the subsidiary acts for the benefit of the parent, its sole shareholder. If a parent and a wholly owned subsidiary do "agree" to a course of action, there is no sudden joining of economic resources that had previously served different interests, and there is no justification for § 1 scrutiny.

Indeed, the very notion of an "agreement" in Sherman Act terms between a parent and a wholly owned subsidiary lacks meaning. A § 1 agreement may be found when "the conspirators had a unity of purpose or a common design and understanding, or a meeting of minds in an unlawful arrangement." *American Tobacco Co. v. United States*, 328 U.S. 781, 810 (1946). But, a parent and a wholly owned subsidiary *always* have a "unity of purpose or a common design." They share a common purpose whether or not the parent keeps a tight rein over the subsidiary; the parent may assert full control at any moment if the subsidiary fails to act in the parent's best interests.

Copperweld, 467 U.S. at 771-2.

Although *Copperweld*, like Section 535.307, involved wholly-owned subsidiaries, numerous courts have subsequently applied the *Copperweld* rationale to situations where, as here, the companies were less than wholly owned, but still under common legal ownership and

control. For example, in *Novatel Communications, Inc. v. Cellular Tel. Supply, Inc.*, 1986 U.S. Dist. LEXIS 16017 (N.D. Ga. 1986), the court found that the *Copperweld* rationale applied to cooperation between a parent and a 51%-owned subsidiary. The court (at pp 25-6) applied the *Copperweld* rationale to the case as follows:

In *Copperweld*, the United States Supreme Court held that a parent and its wholly owned subsidiary were incapable of conspiring for purposes of §1 of the Sherman Act since the two entities had a complete unity of purpose. [*Copperweld*] at 2742. When a parent and its wholly owned subsidiary take concerted action, there is “no sudden joining of economic resources that had previously served different interests, and there is no justification for §1 scrutiny.” *Id.* The Court noted that, whether or not the parent keeps a tight reign over the subsidiary, the interests of the parent are always served by the wholly owned subsidiary and if the subsidiary fails to act in the parent’s best interests, the parent may assert full control at any time. *Id.* The same can be said about Novatel-Canada and its 51% owned subsidiary Carcom. The 51% ownership retained by Novatel-Canada assured it of full control over Carcom and assured it could intervene at any time that Carcom ceased to act in its best interests. Thus, Carcom and Novatel-Canada are incapable of conspiring for purposes of §1 of the Sherman Act. Likewise, Carcom and Novatel-Georgia could not conspire for purposes of §1 since Novatel-Georgia was also part of the same enterprise.

See also, *Direct Media Corp. v. Camden Tel. & Tel. Co.*, 989 F. Supp. 1211 (S.D. Ga. 1997) (51% owner and affiliate qualify for *Copperweld* treatment); *Coast Cities Truck Sales v. Navistar Int’l Transp. Co.*, 912 F. Supp. 747, 764 (D. N. J. 1995) (“Since [the *Copperweld*] decision, several courts have concluded that subsidiaries that are not wholly owned nevertheless cannot be actors in conspiracy with their majority owners.”)

Similarly, in *Bell Atlantic Business Systems Services v. Hitachi Data*, 849 F. Supp. 702, 706 (N.D. Cal. 1994), the court stated:

Under the reasoning of *Copperweld* and its progeny, it is not necessary to conduct a factual inquiry to determine whether a parent and a subsidiary over which the parent has legal control can conspire in violation of §1 of the Sherman Act. *Copperweld* found that a parent and a wholly-owned subsidiary are considered the “same entity” for antitrust purposes because the parent has the power to exercise full control over its subsidiary. For the same reasons, a parent and a subsidiary over which the parent has legal control cannot conspire to restrain trade. They

share a unity of interest and common corporate consciousness because they work toward the same goal. It is undisputed that Hitachi owns 80% of Hitachi Data Holding Company, which owns 100% of Hitachi Data. Accordingly, the Court finds that as a matter of law, Hitachi could not conspire with Hitachi Data to restrain trade in violation of §1 of the Sherman Act.

In its 1988 Antitrust Enforcement Guidelines for International Operations, the Department of Justice concurred that simple majority control is enough to qualify for application of the *Copperweld* rationale. DOJ stated:

In the Department's view . . . the policies underlying the Sherman Act (as discussed in *Copperweld*) support the conclusion that a parent corporation and subsidiary corporation of which the parent owns more than 50 percent of the voting stock are a single economic unit under common control and are thus legally incapable of conspiring with one another within the meaning of section 1.¹

DOJ's position is consistent with the theory of *Copperweld*, and also with the vast majority of case law applying *Copperweld* in cases of less than full ownership.

Since the exemption in Section 535.307 is grounded in the *Copperweld* rationale, the Commission should follow the lead of the numerous courts that have applied *Copperweld* to less than wholly owned corporate enterprises. In this case, both Cosco and OOCL will be part of what the FMC and the courts refer to as a single common business enterprise owned and controlled by CS Holdings, and will have a "unity of interest." It is also noteworthy that the ownership interest in OOCL not held by CS Holdings is held by other public investors and by SIPG, neither of which is a competitor of Cosco or OOCL. This underscores the fact that the less-than-100% ownership by CS Holdings will have no competitive impact. Accordingly, this exemption will not result in a reduction in competition, much less a substantial reduction in

¹ This interpretation of *Copperweld* was not included in the 1995 update of the Guidelines, though never repudiated. The Deputy Assistant Attorney General, Antitrust Division, explained generally that DOJ was eliminating "matters of general antitrust doctrine" from the international guidelines, which is likely why the *Copperweld* reference was not retained. Nevertheless, DOJ's position remains instructive and relevant here.

competition,² and will not be detrimental to commerce. The precise rationale that underlay the Section 535.307 exemption for wholly-owned companies applies fully in this case.

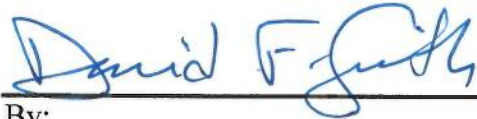
For all the reasons set forth above, the parties therefore respectfully request that the Commission grant an exemption on the same terms as Section 535.307 for any agreements reached between Cosco and OOCL that would otherwise be subject to filing under the Act, including an exemption from the provisions of Section 10(c) of the Act, 46 U.S.C. § 41105, as in Section 535.307. Such relief is authorized by Section 16 of the Shipping Act of 1984, as amended, 46 U.S.C. § 40103(a), and 46 C.F.R. § 502.92 and 46 C.F.R. § 535.301. By this filing, the parties seek the Commission's recognition that all agreements between Cosco and OOCL that would otherwise be subject to filing under the Shipping Act would not need to be filed with

² This is also consistent with DOJ's clearance of the acquisition under the antitrust laws.

the Commission and would not be subject to Section 10(c). The parties further request that the exemption be granted as soon as possible, given that the acquisition of OOCL by Cosco will hopefully be finalized by mid-December.

Respectfully submitted,

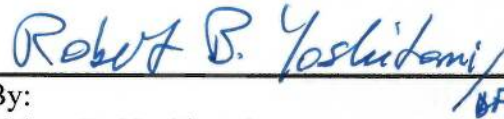
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November 8, 2017

EXHIBIT A

Common Ownership and Control of COSCO and OOCL – Post-Transaction

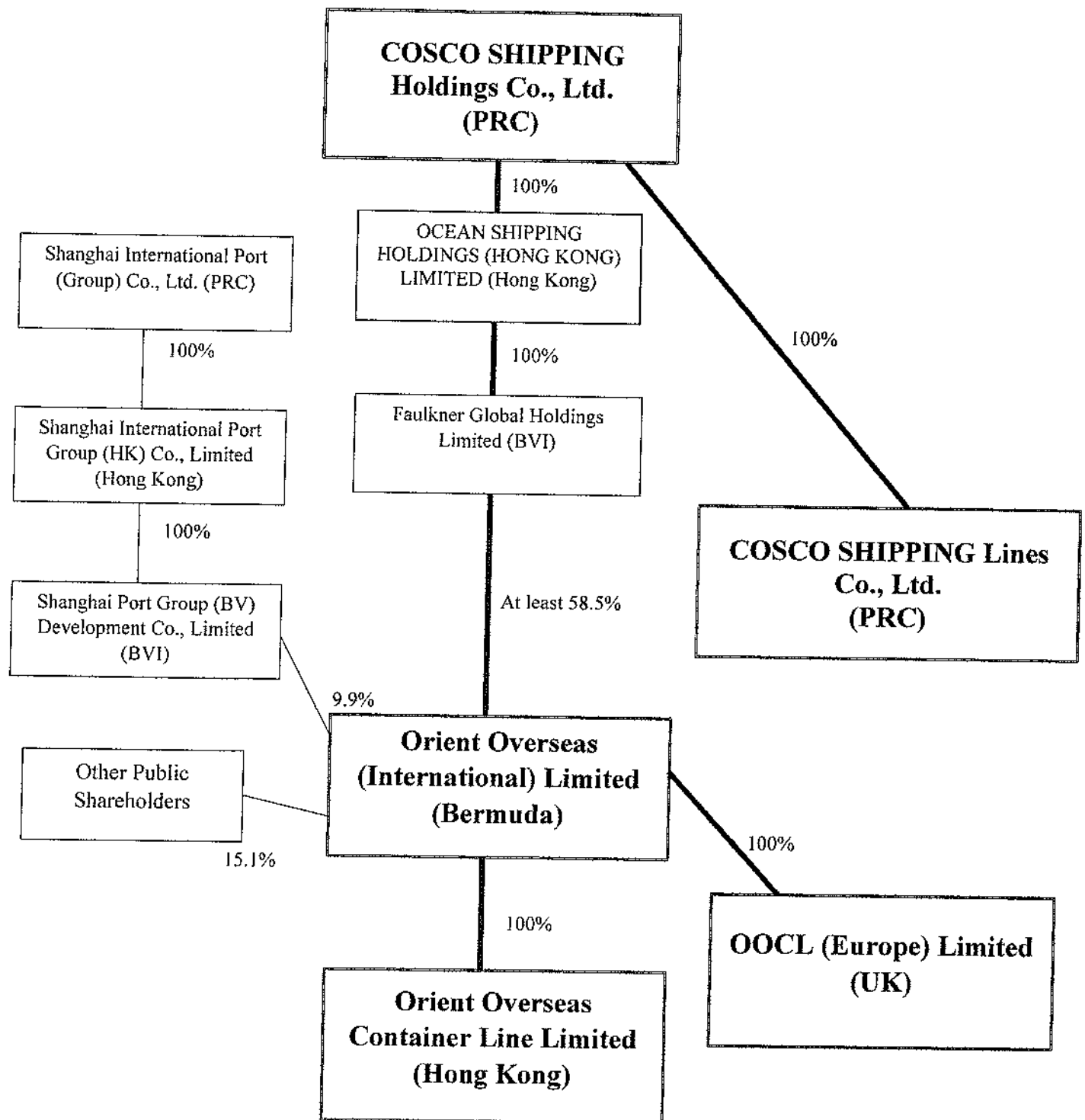


EXHIBIT B



COSCO SHIPPING HOLDINGS AND SIPG JOINTLY OFFER TO ACQUIRE OOIL COMBINATION CREATES A GLOBAL LEADER

- **Offer price of HK\$78.67 cash per share to all OOIL shareholders by way of pre-conditional Voluntary General Offer**
- **Pre-conditions include relevant regulatory approvals, as well as COSCO SHIPPING Holdings shareholder approval**
- **Joint Offerors intend to maintain OOIL's listed status following close of the Offer**
- **Joint Offerors commit to maintaining employment of all employees and will retain existing compensation and benefit system of OOIL**

(Shanghai and Hong Kong, July 9 2017) – COSCO SHIPPING Holdings Co. Ltd. ("COSCO SHIPPING Holdings"; SHA: 601919; HKEx: 1919), a majority owned subsidiary of China COSCO SHIPPING Corporation Ltd, Shanghai International Port (Group) Co., Ltd ("SIPG"; SHA: 600018) and Orient Overseas (International) Limited ("OOIL"; HKEx: 0316) today jointly announced that COSCO SHIPPING Holdings and SIPG have made a pre-conditional voluntary general offer ("Offer") to all shareholders of OOIL to acquire all issued OOIL shares at an offer price of HK\$78.67 in cash. On completion, assuming all OOIL shareholders tender their shares, COSCO SHIPPING Holdings will hold 90.1%, while SIPG will hold 9.9% of OOIL.

The Offer is dependent upon the satisfaction of pre-conditions, which include the necessary regulatory approvals as well as approval from COSCO SHIPPING Holdings shareholders. The controlling shareholder, who currently holds 68.7% of OOIL, has irrevocably undertaken to accept the Offer.

The transaction marks the latest consolidation in the global maritime industry. It is believed that the combination of COSCO SHIPPING Holdings and OOIL can deliver a stronger competitive advantage. OOIL is the seventh largest container shipping company in the world, with extensive container shipping routes and networks. It is known for its superior service and operational performance in the global maritime industry. The combined COSCO SHIPPING Lines, a subsidiary of COSCO SHIPPING Holdings, and OOIL will operate more than 400 vessels over a much expanded yet well-structured network, with capacity exceeding 2.9 million TEUs including orderbook. The combination will enhance the industry leading position of both companies as a whole.

Post closing, COSCO SHIPPING Lines and OOIL will continue to operate under their respective brands, providing container transport and logistic services. By leveraging the strengths of each company and achieving synergies, the businesses will enhance their operating efficiencies and competitive positions to achieve sustainable growth in the long term. Both companies are members of the Ocean Alliance, and will continue to work together under this framework.

"We respect OOIL's management team and its expertise, not to mention its people, brand and culture," said Mr. Wan Min, Chairman of COSCO SHIPPING Holdings. "Our company remains committed to enhancing Hong Kong as an international shipping center. Following completion, we

will continue to invest and strengthen our industry leadership, providing a more extensive platform for the employees of OOIL to excel.”

Mr. Andy Tung, Executive Director of OOIL, commented that, “We are proud of the business we have built and the people who have been building it. This decision has been carefully considered and we believe it helps ensure the future success of OOIL. We are confident that COSCO SHIPPING Holdings is the right partner for us.”

The Joint Offerors intend to maintain OOIL’s listed status following close of the Offer, and are committed to retaining the existing compensation and benefit system at OOIL and will not terminate the employment of any employee at OOIL as a result of this transaction for at least 24 months after the close of the offer. Besides that, the Joint Offerors intend to maintain OOIL’s global headquarter functions and presence in Hong Kong, and utilize the advantage of both companies’ global network to contribute to the economic prosperity of the territory and development of Hong Kong as an international shipping center.

The board of directors of OOIL has established an Independent Board Committee to advise the shareholders of OOIL in connection with the Offer. An independent financial adviser will be appointed.

UBS AG is the financial adviser to the Joint Offerors and Paul Hastings is the legal adviser to COSCO SHIPPING Holdings, while UBS Securities is the independent financial adviser to COSCO Shipping Holdings. J.P. Morgan is the financial adviser and Slaughter and May is the legal adviser to OOIL.

- END -

WARNING:

The Offer is subject to the fulfilment or waiver of pre-conditions, including regulatory approvals and shareholders’ approval of COSCO SHIPPING Holdings. The making of the Offer is therefore a possibility only and all references to the Offer in this press release are references to the possible Offer which will be implemented if and only if the pre-conditions are satisfied or waived. Accordingly, shareholders and prospective investors of COSCO SHIPPING Holdings and OOIL are advised to exercise caution when dealing in the securities of COSCO SHIPPING Holdings or OOIL.

This press release is for information purposes only and is not an offer to sell, or a solicitation of an offer to buy, any securities in any jurisdiction. This press release is a brief summary of the Offer outlined in further detail in the joint announcement of COSCO SHIPPING Holdings, SIPG and OOIL dated 9 July 2017 (the “joint announcement”). The joint announcement contains important information about the Offer. Shareholders and prospective investors of COSCO SHIPPING Holdings and OOIL are advised to read the joint announcement in its entirety. The joint announcement is available on the website of the Hong Kong Stock Exchange at www.hkexnews.hk and on the websites of each of COSCO SHIPPING Holdings and OOIL.

About COSCO SHIPPING Holdings

COSCO SHIPPING Holdings Co., Ltd (“COSCO SHIPPING Holdings” , Stock Code: 1919.HK; 601919.SS) is the listed company controlled by China COSCO SHIPPING Corporation Limited. The Company was listed on the Hong Kong Stock Exchange in June 2005 and the Shanghai Stock Exchange in June 2007. The Company now focuses on container shipping and terminal operations. COSCO SHIPPING Lines, a wholly-owned subsidiary of the Company, is the world fourth largest

container shipping company with its operating fleet capacity of 327 ships and 1.7 million TEUs. COSCO SHIPPING Ports, another controlled subsidiary of the Company, operates a total of 158 container berths in 30 ports around the world, with the total annual handling capacity of 97.25 million TEUs. COSCO SHIPPING Holdings is committed to become a top tier container shipping and port service provider with its continuing efforts to build up a global network, provide customers with integrated solutions and create higher return for shareholders.

About Shanghai International Port (Group) Co., Ltd

Shanghai International Port (Group) Co., Ltd ("SIPG") is a company incorporated under the laws of the PRC (Shanghai Stock Exchange (stock code: 600018)). SIPG is principally engaged in port-related businesses, the main business sections of which include container sector, bulk cargo sector, port logistics sector and port service sector. SIPG is the operator of the public terminals in the Port of Shanghai in the PRC.

About OOIL

Orient Overseas (International) Limited (OOIL) is a limited company incorporated in Bermuda and OOIL shares are listed on the Main Board of the Hong Kong Stock Exchange. OOIL is principally engaged in the provision of container transport and logistic services. Orient Overseas Container Line, a wholly owned subsidiary of OOIL, is one of the world's largest integrated international transportation, logistics and terminal companies, and is an industry leader in the use of information technology and e-commerce to manage the entire cargo transport process.

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